

1 **SENATE FLOOR VERSION**

2 February 19, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 462

By: Weaver

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7 An Act relating to municipal police officers;
8 authorizing retired municipal police officers to
9 retain firearm and badge; requiring request in
10 writing; providing exceptions; authorizing custody
and possession of the firearm and badge to be awarded
to family of deceased officer; providing for
codification; and providing an effective date.

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13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 34-109 of Title 11, unless there
16 is created a duplication in numbering, reads as follows:

17 A. A municipal police officer who retires under the Oklahoma
18 Police Pension and Retirement System pursuant to Sections 50-101
19 through 50-136.8 of Title 11 of the Oklahoma Statutes may request to
20 retain custody and possession of his or her municipal-issued firearm
21 and badge. The retiring officer shall request in writing to the
22 head of the municipal law enforcement agency of the municipality in
23 which the officer is retiring for permission to retain custody and
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1 possession of his or her municipal-issued firearm and badge. The
2 agency head may grant the request except in the following cases:

3 1. The officer is not in good standing with the municipal law
4 enforcement agency from which he or she is retiring;

5 2. The officer has been convicted of a felony involving moral
6 turpitude;

7 3. The officer is mentally incapacitated and could not perform
8 duties if recalled; or

9 4. When good cause is shown that granting approval of the
10 request would be detrimental to public health, safety, and welfare.

11 B. Upon the death of a municipal police officer prior to
12 retirement, custody and possession of the firearm and badge may be
13 awarded by the head of the municipal law enforcement agency to a
14 spouse or next of kin of the deceased officer in accordance with the
15 agency's policy.

16 SECTION 2. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
18 February 19, 2025 - DO PASS AS AMENDED BY CS
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